

STATE OF NEW YORK

6601--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 6, 2025

Introduced by M. of A. KELLES -- read once and referred to the Committee on Consumer Affairs and Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to enacting the "farm equipment fair repair act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Short title. This act shall be known and may be cited as the "farm equipment fair repair act".

§ 2. The general business law is amended by adding a new article 33-C to read as follows:

ARTICLE 33-C

AGRICULTURAL EQUIPMENT RIGHT TO REPAIR

Section 698. Definitions.

698-a. Agricultural equipment repair; rights of consumers.

§ 698. Definitions. For the purposes of this section, the following terms shall have the following meanings:

1. "Authorized repair provider" means an individual or business who has an arrangement with the original equipment manufacturer under which such original equipment manufacturer grants to such individual or business a license to use a trade name, service mark, or other proprietary identifiers for the purposes of offering the services of diagnosis, maintenance, or repair of agricultural equipment under the name of such original equipment manufacturer, or other arrangement with such original equipment manufacturer to offer such services on behalf of, or under contract to, such original equipment manufacturer. An original equipment manufacturer who offers the services of diagnosis, maintenance, or repair of its own agricultural equipment shall be considered an authorized repair provider with respect to such equipment.

2. "Agricultural equipment" or "equipment" means any device, instrument or machinery used in agriculture, horticulture, viticulture, dairy

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 farming, livestock farming, poultry and/or beef raising, forestry, prop-
2 erty maintenance and in the production of any and all products raised or
3 produced on farms and processed or manufactured products thereof, trans-
4 ported or intended to be transported in interstate and/or foreign
5 commerce.

6 3. "Documentation" means any manual, maintenance procedures, func-
7 tional and wiring diagrams, reporting output, service code description,
8 board view file or complete PCB layout, PCB schematic, security code,
9 password, training material, troubleshooting information, full list of
10 required tools, full parts list, and other guidance or information used
11 in effecting the services of diagnosis, maintenance, or repair of agri-
12 cultural equipment.

13 4. "Embedded software" means any programmable instructions provided on
14 firmware delivered with or loaded to agricultural equipment, with
15 respect to such agricultural equipment's operation, including all rele-
16 vant patches and fixes made by the manufacturer, including but not
17 limited to items described as a basic internal operating system, an
18 internal operating system, a machine code, an assembly code, a root
19 code, or a microcode.

20 5. "Fair and reasonable terms" means:

21 (a) with respect to parts, made available by the original equipment
22 manufacturer, either directly or through an authorized repair provider,
23 in a manner that:

24 (i) is not conditioned on or imposing a substantial obligation or
25 restriction that is not reasonably necessary for enabling the owner or
26 independent repair provider to engage in the diagnosis, maintenance, or
27 repair of agricultural equipment made by or on behalf of the original
28 equipment manufacturer;

29 (ii) does not require a minimum or maximum quantity of parts that
30 owners and independent repair providers can purchase; and

31 (iii) does not condition access to parts on any additional contract
32 other than a purchase order;

33 (b) with respect to documentation, made available by the original
34 equipment manufacturer without requiring any contract agreement or
35 account creation and at no charge except that, when such documentation
36 is requested in physical printed form, a charge may be included for the
37 reasonable actual costs of preparing and sending such documentation; or

38 (c) with respect to tools, made available by the original equipment
39 manufacturer:

40 (i) at no charge, except that, when a tool is requested in physical
41 form, a charge may be included for the reasonable, actual costs of
42 preparing and sending such tool;

43 (ii) without requiring authorization or internet access for the use or
44 operation of such tools, or imposing impediments to access or use of the
45 tools to diagnose, maintain, or repair and enable full functionality of
46 agricultural equipment; and

47 (iii) in a manner that does not impair the efficient and cost-effec-
48 tive performance of any such diagnosis, maintenance, or repair.

49 6. "Firmware" means a software program or set of instructions
50 programmed on agricultural equipment, or on a part of such agricultural
51 equipment, to allow such agricultural equipment or part to communicate
52 within itself or with other computer hardware.

53 7. "Independent repair provider" means an individual or business oper-
54 ating in the state that does not have an arrangement described in subdi-
55 vision one of this section with an original equipment manufacturer, and

1 who is engaged in the services of diagnosis, maintenance, or repair of
2 agricultural equipment.

3 8. "Original equipment manufacturer" or "manufacturer" means a busi-
4 ness engaged in the business of selling, leasing, or otherwise supplying
5 new agricultural equipment manufactured by or on behalf of itself, to
6 any individual or business.

7 9. "Owner" means an individual or business who owns or leases agricul-
8 tural equipment purchased or used in this state.

9 10. "Part" means any replacement part, either new or used, made avail-
10 able or used by an original equipment manufacturer or its authorized
11 repair providers for purposes of effecting the services of maintenance
12 or repair of agricultural equipment manufactured by or on behalf of,
13 sold or otherwise supplied by the original equipment manufacturer.

14 11. "Parts pairing" refers to the practice by manufacturers of using
15 software to identify component parts through a unique identifier.

16 12. "Tool" means any software program, hardware implement, or other
17 apparatus used for diagnosis, maintenance, or repair of agricultural
18 equipment, including software or other mechanisms that provision,
19 program, or pair a new part, calibrate functionality, or perform any
20 other function required to bring the product back to fully functional
21 condition, including any updates.

22 13. "Trade secret" means proprietary information of a manufacturer
23 that is protected from disclosure pursuant to state or federal law.

24 14. "Updates" means recommended corrections or adjustments to parts,
25 tools or information that are created and distributed by the original
26 equipment manufacturer and used in offering the services of diagnosis,
27 maintenance or repair of agricultural equipment.

28 § 698-a. Agricultural equipment repair; rights of consumers. 1.
29 Requirements. (a) An original equipment manufacturer of agricultural
30 equipment and parts for such equipment that are sold or used in New York
31 state shall make available to any independent repair provider and/or
32 owner of agricultural equipment manufactured by or on behalf of, or sold
33 by such original equipment manufacturer, on fair and reasonable terms,
34 any documentation, parts, and tools, required for the diagnosis, mainte-
35 nance, or repair of such agricultural equipment and parts for such
36 equipment, inclusive of any updates. Such documentation, parts and tools
37 shall be made available either directly by such original equipment
38 manufacturer or via an authorized repair provider or distributor.

39 (b) An original equipment manufacturer shall not use parts pairing or
40 any other mechanism to:

41 (i) prevent the installation or functioning of any otherwise-function-
42 al part, including a non-manufacturer approved replacement part or
43 component;

44 (ii) inhibit or reduce the functioning of any part or board-level
45 component, such that replacement by an independent repair provider or
46 the device owner may cause the device to operate with reduced function-
47 ality or performance;

48 (iii) create false, misleading, deceptive, or non-dismissible alerts
49 or warnings about parts;

50 (iv) charge additional fees or increased prices for future repairs; or
51 (v) limit who can purchase documentation, parts, and tools or perform
52 repair services.

53 (c) The original equipment manufacturer of equipment that requires
54 deactivating an electronic lock for purposes of repair shall make avail-
55 able to any owner, or independent repair provider, with the express
56 permission of the owner, on fair and reasonable terms, any special

1 documentation, tools, and parts needed to access and reset such elec-
2 tronic lock when disabled in the course of diagnosis, maintenance, or
3 repair of such equipment. Such documentation, tools, and parts may be
4 made available through an appropriate secure release system.

5 2. Limitations. (a) Nothing in this section shall be construed to
6 require an original equipment manufacturer to divulge any trade secret
7 to any owner or independent service provider, except as necessary to
8 perform diagnosis, maintenance, or repair on fair and reasonable terms.

9 (b) Nothing in this section shall be construed to alter the terms of
10 any arrangement made for compliance with paragraph (a) of subdivision
11 one of this section in force between an authorized repair provider and
12 an original equipment manufacturer, including, but not limited to, the
13 performance or provision of warranty or recall repair work by an author-
14 ized repair provider on behalf of an original equipment manufacturer and
15 pursuant to such arrangement, except that any provision in such terms
16 that purports to waive, avoid, restrict or limit the original equipment
17 manufacturer's obligations to comply with this section shall be void and
18 unenforceable.

19 (c) No original equipment manufacturer or authorized repair provider
20 shall be liable for any damage or injury to any agricultural equipment
21 caused by an independent repair provider or owner which occurs during
22 the course of repair, diagnosis, or maintenance and is not attributable
23 to such original equipment manufacturer or authorized repair provider
24 other than if such damage or injury is attributable to design or manu-
25 facturing defects.

26 (d) Nothing in this section shall be construed to require a manufac-
27 turer to make available special documentation, tools, or parts that
28 would disable or override anti-theft security measures set by the owner
29 of the equipment without such owner's authorization.

30 (e) Nothing in this section shall be construed to require a manufac-
31 turer to sell a part if such part is no longer available to such
32 manufacturer.

33 (f) Nothing in this section shall be construed to require a manufac-
34 turer to sell any service materials that would be illegal to use under
35 federal or state law.

36 (g) Nothing in this section shall be construed to prevent a parts
37 dealer from pricing goods over the wholesale price of such goods.

38 3. Enforcement. If the attorney general determines that a failure to
39 provide documentation, parts, or tools as described required under
40 subdivision one of this section constitutes an unfair method of competi-
41 tion, false advertising, or unfair or deceptive trade practices under
42 section three hundred forty-nine of this chapter, all remedies, penal-
43 ties, and authority granted to the attorney general by such section
44 three hundred forty-nine shall be available to the attorney general for
45 the enforcement of this section.

46 4. Exclusions. The provisions of this section shall not apply to:

47 (a) a motor vehicle that is designed to transport individuals or prop-
48 erty on a street or highway and is certified by a motor vehicle manufac-
49 turer under all requirements for the distribution and sale of motor
50 vehicles in the United States; or

51 (b) industrial, construction, compact construction, mining or road-
52 building equipment.

53 5. Applicability. This section shall apply to equipment first manufac-
54 tured and sold on or after July first, two thousand fifteen.

55 § 3. This act shall take effect on the one hundred eightieth day after
56 it shall have become a law.